

Tentative Rulings for Department 502

Begin at the next page

(20)

Tentative Ruling

Re: ***Krick v. Fresno County Sheriff's Department***
Superior Court Case No. 24CECG00820

Hearing Date: July 28, 2026 (Dept. 502)

Motion: Judgment on the Pleadings

**If oral argument is timely requested, it will be entertained on
Thursday, July 30, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To strike the First Amended Complaint filed on June 4, 2026. (Code Civ. Proc., § 436, subd. (b).) To grant defendant's motion for judgment on the pleadings without leave to amend as to all causes of action but violation of the Public Records Act. (Code Civ. Proc., § 438, subd. (c)(1)(A).) Plaintiff may file an amended complaint within 10 days of service of the order by the clerk asserting only one cause of action for violation of the California Public Records Act.

Explanation:

Plaintiff filed the Complaint in this action on February 28, 2024, seemingly alleging causes of action for (1) illegal search and seizure, (2) destruction of property, (3) police misconduct, (4) defamation of character, and (5) withholding public records and (6) violations of the Public Records Act. Defendant Fresno County Sheriff's Department filed an answer to the Complaint on March 13, 2025. Though in meeting and conferring plaintiff refused to amend the Complaint, resulting in defendant filing the instant motion for judgment on the pleadings. Plaintiff then filed a First Amended Complaint ("FAC") on June 4, 2026

The FAC was improperly filed. Since defendant had filed an answer, plaintiff was required to obtain leave of court before amending the Complaint. (See Code Civ. Proc., § 472; *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175.) Because plaintiff never obtained leave of court to file the FAC, the pleading is hereby stricken. (See Code Civ. Proc., § 436, subd. (b).) However, the ruling on the motion for judgment on the pleadings would be the same even if directed at the FAC, as it alleges the same causes of action.

No suit may be brought against a public entity until a written claim has been presented to the public entity and has been acted upon by the Board, or has been deemed to have been denied by the Board. (Gov. Code, § 945.4.) The claim filing requirement applies to any lawsuit for damages against government entities. (Gov. Code, §§ 911.2, 950.2, 945.4.) The failure to plead compliance with the Government Claims Act bars the plaintiff from bringing a suit against that entity and its employees. (*Id.*, §§ 945.4 and 950.2; *State v. Superior Court* (2004) 32 Cal.4th 1234, 1237.) Compliance with the claims presentation requirement is an element of plaintiff's cause of action. (*Id.* at p. 1240.) A government tort claim pertaining to personal injury must be presented "not later than six months after the accrual of the cause of action." (Gov. Code, § 911.2, subd. (a).)

